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**COMMUNICATIVE ETHICS AND THE CLAIMS
OF TRANSCENDENTAL PHENOMENOLOGY**

EXPLORING THE FOUNDATIONS OF INTERSUBJECTIVITY

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INTRODUCTION

Jürgen Habermas and Karl-Otto Apel are the most widely known theorists of communicative ethics.¹ Their theories, while grounded in somewhat different epistemologies, share in holding that the truth of any proposition is determined by a process of open discourse and reasoned argument that leads, in principle, to universal recognition. This view of the intersubjective nature of truth-claims led, in the twentieth century, to new approaches to political liberalism predicated on the belief that discourse would lead to a post-metaphysical universalist position. Unlike earlier attempts to ground the transcendental analysis of subjectivity, Habermas and Apel seek the foundation of their moral theories in universal principles derived from the transcendental analysis of intersubjectivity. They are both critical of Husserl's phenomenology because they view it as finding the foundations of knowledge in subjective experience. That is to say, for Habermas and Apel, the method of phenomenological enquiry is "solipsistic" in the sense that it seeks to

¹Their theories developed respectively in two work: Jürgen Habermas, *Postmetaphysical Thinking: Philosophical Essays*, William Hehengarten trans. (Cambridge, MA: The MIT Press, 1992); and Karl-Otto Apel, (Glen Addy and David Frisby, trans.) *The Transformation of Philosophy* (London: Routledge and Kagen Paul, 1980).

find the foundations of knowledge in subjective experiences, whereas their theories seek the foundations of knowledge in the transcendental analysis of intersubjectivity, which they believe occurs exclusively in language as it is used in discourse.

Recently, however, Dan Zahavi has defended phenomenology against this charge. In his book, *Husserl and Transcendental Intersubjectivity*,² Zahavi argues that in his later work, Edmund Husserl worked out a transcendental analysis of the intersubjective foundations of phenomenology and that Husserl's analysis was significantly developed by later thinkers, especially Maurice Merleau-Ponty. Zahavi's reconstruction of Husserl raises questions about the foundational epistemological commitments of communicative ethics. Most notably, it challenges the claim made in different ways by Habermas and Apel that language is the exclusive source of human meaning. Their theories of communicative ethics rely respectively on Kantian and Wittgensteinian notions of meaning that are grounded in logico-linguistic analysis. But, according to Zahavi's analysis of Husserl, logico-linguistic practice does not exhaust the lived experience of meaning. Zahavi shows how Husserl, particularly in his later work, viewed intersubjectivity as a lived experience between two embodied creatures. This project was further developed by Maurice Merleau-Ponty.

Both communicative ethics and embodied theories of consciousness have grown in influence. Habermas' theory continues to be influential for political theory in the Anglophone world and is being developed with particular success in the work

² Dan Zahavi, (Elizabeth A. Behnke, trans.) *Husserl and Transcendental Intersubjectivity* (Athens, OH: Ohio University Press, 2001).

of theorists like Seyla Benhabib,³ who developed the modified account of the epistemology that is discussed later in this essay. It has found new uses in the ethics of technology, as discourse theories appear to have immediate application to emerging information technologies. Embodied cognition has also received growing attention from a number of diverse areas, including cognitive sciences and artificial intelligence. There is, therefore, a need to examine closely the debate between epistemological commitments of communicative ethics and the phenomenology of intersubjective experience.

This essay begins with a description of phenomenology, paying particular attention to its emergence in relation to analytic philosophy. It then describes Zahavi's project, emphasizing the epistemological assumptions in his analysis. Next, it explicates the theoretical critiques of phenomenology brought by Apel and Habermas, giving particular attention to their critiques of phenomenology. Zahavi responds by arguing that Husserlian phenomenology in fact depends on intersubjectivity. His reading of phenomenology makes meaning outside of language a central feature of the phenomenology of intersubjectivity. The concluding part of the essay suggests the significance of this "extra-linguistic" meaning for "post-secular" theories of deliberative democracy by suggesting how such a theory might include some understanding of how experience is formed.

³ See, pp. 54-58, below, discussing Seyla Benhabib, *Situating the Self, Gender, Community, and Postmodernism in Contemporary Ethics*, (London, UK: Routledge, 1992).

PART I. THE INTERSUBJECTIVE INTERPRETATION OF PHENOMENOLOGY

A. The Epistemological Division Between the Two Camps

Early in the twentieth century, there was no rift between analytic philosophy and phenomenology because neither yet existed. According to an influential history by Michael Dummett,⁴ the split in philosophy emerged from a disagreement between Gottlieb Frege (1848-1925) and Edmund Husserl (1859-1938) that arose in the context of a spirit of collaboration as Husserl and Frege worked in opposing a movement within neo-Kantianism that was called “psychologism.”⁵ This was a solipsistic philosophy that argued that all knowledge, including mathematics and logic, is reducible to subjective psychology. Initially, Husserl was investigating psychologism, but under the influence of Frege, whom Dummett refers to as the “grandfather” of analytic philosophy, Husserl was persuaded that psychologism could not establish a criteria for truth. Husserl and Frege then worked together to oppose it.

Both Frege and Husserl were seeking ways to defend truth against solipsism. Husserl’s phenomenology led to transcendental subjectivity, a view that Frege would eventually argue was still solipsistic. Frege’s approach led to language and

⁴ Michael Dummett, *Origins of Analytic Philosophy*, (Cambridge, MA: Harvard University Press, 1993).

⁵ For a discussion of “psychologism,” see Kusch, Martin, “Psychologism”, *The Stanford Encyclopedia of Philosophy* (Spring 2014 Edition), Edward N. Zalta (ed.), URL = <<http://plato.stanford.edu/archives/spr2014/entries/psychologism/>>.

eventually the linguistic turn in philosophy. Husserl developed his contribution in the two volumes of *The Logical Investigations*.⁶ In these two volumes, Husserl lays out an elaborate examination of the relationship between subjectivity and *a priori* reasoning by examining the objective and subjective aspects to claims of self-evident truth. In the course of doing this, he explores the relationship between the experiences of particular truths and the idealization of truth as such, finding that the abstract idealization of truth is prior to particular experiences of self-evidence.

As Dummett explains, Frege, in his *Grundlagen der Arithmetik* (1884),⁷ sought to refute psychologism by showing that since the objects of study in mathematics and logic are not defined by or proven by subjective mental states, the fields are not reducible to psychology. In making this argument Frege focused on the question of how numbers are given to conscious awareness. Dummett observes that in paragraph 62 of the *Foundations of Arithmetic*, Frege investigated Kant's question, "How are numbers given to us?" Frege immediately reformulates this question in his own terms by speaking of the meaning (*Bedeutung*) of sentences containing numbers. Dummett believes this is one of the earliest formulations of the linguistic turn. As he puts it, the linguistic turn holds that "an epistemological enquiry (behind

⁶ Edmund Husserl, *Logical Investigations, Vol. I*, Dermot Moran, trans. (New York: Routledge, 2001); and Edmund Husserl, *Logical Investigations, Vol. II*, Dermot Moran, trans. (New York: Routledge, 2001) ("LU I" and "LU II").

⁷ Gottlieb Frege, *Foundations of Arithmetic, A Logico-Mathematical Investigation into the Concept of Number*, J. L. Austin, trans. (Evanston, IL: Northwestern University Press, 1981).

which lies an ontological one) is to be answered by a linguistic investigation.”

Although Frege later expressed frustration about natural language, he maintained that it is the “best that we can do.”⁸

Frege made use of his conception of thoughts, which he describes as a “third realm,” neither fully subjective nor fully objective. Thoughts are not objective in the sense that they are solely external events nor are they objects fully grasped by mental acts. But, they are not solely subjective either, since they are never “mine alone.” Thoughts are “timeless and immutable entities which do not depend for their existence on being grasped or expressed.”⁹ Frege appears to assert that linguistic context gives the thought of numbers their meaning. That is to say, the thought of a number would have no meaning outside of the context of a language in which numbers have sense. He generalizes this thesis to state that it is only in the context of a sentence that any word has sense by corresponding to the thought to which it refers. According to Dummett, this argument by Frege, which began with the substitution of Kant’s subjective psychological question (“How are numbers given to us?”) with an intersubjective linguistic one (“How do sentences containing numbers have meaning?”) began the “linguistic turn” in philosophy. Although Frege later expressed frustration with natural language because he believed that it often obscures meaning rather than clarifies, he maintained that it is the best we can do.¹⁰

⁸ Dummett, *Origins of Analytic Philosophy*, 5.

⁹ Ibid, 23.

¹⁰ Ibid, 7.

Frege's approach embodies two distinguishing features of analytic philosophy: (i) A philosophical account of thought can be obtained through the analysis of language; and (ii) such an account can only be achieved through an account of language. For Frege and for the later analytic philosophers, meaning exists only intersubjectively in language. He argued that the "sense" of an intentional being is its reference to thoughts in the context of linguistic expression. Conversely, truth is language represented in the mind. It results when "thoughts" (the third realm) are expressed (given sense) in language (derived from context), thereby representing the thoughts in subjective mental objects (intentional beings). Truth is therefore intersubjective. It is a matter of using language in such a way as to meet the norms and expectations of ordinary grammar and syntax among persons sharing in a linguistic community. Analytic philosophy employs conceptual analysis as its primary method because it presumes that only through the analysis of concepts, as they are actually used in ordinary language, can truth be gained.

Eventually the different approaches of Frege and Husserl led to the divide between analytic and phenomenological methods. Frege influenced Bertrand Russell and Alfred North Whitehead, and, through Russell, Frege's linguistic theory influenced Ludwig Wittgenstein, whose early work, the *Tractatus Logico Philosophicus*, led other philosophers to develop a style of philosophy called "analytic" that focused on conceptual and linguistic analysis. Phenomenology was developed with greater sophistication by Husserl and his students (notably Merleau-Ponty) in numerous later works. Today it is commonly understood to be a method of analysis that focuses on richly describing the lived experience of being

aware of some phenomenon. Despite the influence of Husserl's students in France and Germany, its reception in the United Kingdom and the United States has remained largely hostile. Analytic philosophers have tended to view phenomenology as introspective and unscientific. For a long time, only a very few philosophers in America (notably, Herbert Dreyfus) looked favorably on it.

Recently, however, the resistance to phenomenology among Anglophone philosophers has begun to ease. A recent book, *The Phenomenological Mind*,¹¹ by Shaun Gallagher and Dan Zahavi cites three factors for this change. First, that cognitive sciences debated the "hard problem" of consciousness in the 1990s (led by David Chalmers, Thomas Nagel, John Searle, Daniel Dennett, and Owen Flanagan). Methodological questions arose that sparked new interest in the resources that phenomenology holds for investigating first-person experience without becoming introspectionist. Second, theories of embodied cognition appeared on the scene that found within analytic philosophy stubborn remnants of Cartesian mind-body dualism. They looked to phenomenology, especially the work of Maurice Merleau-Ponty for arguments against disembodied cognition. And, third, developments within neuroscience that allow researcher to glimpse in to the working brain depended on techniques for assessing reports by test subjects on their lived experiences while undergoing the experiments. This was necessary for designing and carrying out the research. Phenomenology again offered some resources for neuroscience.

¹¹ Shaun Gallagher and Dan Zahavi, *The Phenomenological Mind, An Introduction to Philosophy of Mind and Cognitive Science* (London: Routledge, 2008).

B. The Objectives of Phenomenology

To understand Zahavi's claim that phenomenology rests on a conception of transcendental intersubjectivity, it is useful to consider his early thinking on the concept of intentionality that appeared in his first major philosophical work, *Logical Investigations*.¹² In this work Husserl's purpose was to argue against psychologism. His claim is that psychologism confuses the domain of logic and the domain of psychology. Logic (and the philosophy that makes use of logical inference) investigates ideal formal structures and laws. Psychologism is consciousness turned back on itself through logic. It investigates the ideal (necessary) structure and laws of consciousness itself. Psychology, however, is an empirical science that investigates the contingent factual nature of consciousness, and its results are therefore characterized by the same vagueness and mere probability that mark the results of all other empirical sciences.¹³ Zahavi explains that,

to reduce logic to psychology is consequently a regular category mistake that completely ignores the ideality, apodicticity (indubitable certainty), and (nonempirical validity) characterizing the laws of logic.

¹² Husserl, *Logical Investigations* (LU I and LU II).

¹³ Husserl, *LU I*, 181.

These features can never be founded in or explained by reference to the factual-empirical nature of the psyche.¹⁴

Zahavi summarizes Husserl's view as meaning that "the fundamental mistake of psychologism is that it does not distinguish correctly between the object of knowing and the act of knowing."¹⁵ The object of knowing can be investigated through logic alone, but the act of knowing has subjective contingencies that must be investigated empirically. The method Husserl developed, which became phenomenology, was intended for investigating the distinction between objective and subjective.

Husserl developed the phenomenological method in the second volume of the *Logical Investigations*, where he focuses on investigating the relationship between logic and psychological idiosyncrasy in the structure of conscious awareness. The Fifth Investigation deals with Husserl's concept of "intentionality." The term has a technical meaning that is different from the usage found in Franz Brentano's book, *Psychology from an Empirical Standpoint* (*Psychologie vom empirischen Standpunkt*), published in 1874.¹⁶ Husserl describes Brentano's notion of "intentionality" this way:

¹⁴ Dan Zahavi, *Husserl's Phenomenology*, (Stanford, CA: Stanford University Press, 2003) 9. (citation omitted).

¹⁵ Ibid.

¹⁶ Franz Brentano, (eds. Oskar Krauss and Linda L. McAlister) (trans. Antos C. Rancurello, T. B. Terrell, and Linda L. McAlister) *Psychology from an Empirical Standpoint*, (London: Routledge, 1993).

In perception something is perceived, in imagination something is imagined, in a statement something is stated, in love something is loved, in hate hated, in desire desired, etc. Brentano looks to what is graspable common to such instances, and says that 'every mental phenomenon is characterized by what the medieval schoolmen called the intentional (or mental) inexistence of an object, and by what we, not without ambiguity, call the relation to a content, the direction to an object (by which a reality is not to be understood) or an immanent objectivity. Each mental phenomenon contains something as object in itself, though not all in the same manner.' This 'manner in which consciousness refers to an object' (an expression used by Brentano in other passages) is presentative in a presentation, judicial in a judgment etc. etc.¹⁷

Husserl steadfastly denies that intentionality refers to some mental content or event that is located within consciousness because he denies that intention is apart from the real object. He does not mean that all intentional objects are real (unicorns can be intended but are not real). He does mean, though, that if there is a real object it is what is intended and not some ephemeral representation of it.¹⁸

He argues that there are three ways to study intentional experiences, as the immanent (*reelle*) content of an act, as the meaning of the experience, or as the intended object of the act. (The later, intended object, is not an external cause but

¹⁷ Husserl, *LUI*. 95-96.

¹⁸ Zahavi, *Husserl's Phenomenology*, 22.

also the internal moments of the experience.) Of particular importance to this essay is the type of intention associate with meaning (the second of the three ways to study experiences). Husserl observes that act, meaning and object are independent. An object, material or mental, should not be confused with the meaning of the object or with the act (process by which it comes to awareness). A critical observation that he makes is this: "Our interests, our intentions, our thought—mere synonyms if taken in sufficiently wide senses—point exclusively to the thing meant in the sense-giving act."¹⁹ He means we take the meaning of an experience from the act (immanent content of experiencing). Phenomenology is the study of lived experiences where the meaning of the experience is viewed as the immanent content of the awareness of experience.

Experience, Language, and Signative Potential

This approach fundamentally differs from Gottlieb Frege's theory of meaning. Truth, for Frege, exists as a thought shared in language. He argued that the "sense" of an intentional being is its reference to thoughts in the context of linguistic expression. Conversely, truth is language represented in the mind. It results when "thoughts" (the third realm) are expressed (given sense) in language (derived from context), thereby representing the thoughts in subjective mental objects (intentional beings). Truth is therefore intersubjective. It is a matter of using language in such a way as to meet the norms and expectations of ordinary grammar and syntax among persons sharing in a linguistic community. Analytic philosophy

¹⁹ Ibid, 24.

employs conceptual analysis as its primary method because it presumes that only through the analysis of concepts, as they are actually used in ordinary language, can truth be gained. This is where Frege differed from Husserl.

Husserl however believed that reference is not a linguistic outcome because reference is not abstract, but language must be. For example, to unequivocally refer to an object, one might point with a finger. The object referred to is not some instance of the object but “this” instance.²⁰ The Scholastic concept of “haecceity” (“thisness”) is useful here. The haecceity of an object is lost if meaning is exclusively the province of language. This means, for Husserl, that experience has cognitively significant pre-linguistic and extra-linguistic aspects that are immanent contents in awareness. Zahavi notes that Husserl’s interest in pre-linguistic meaning should not however be taken to imply that he neglects the importance of language. In fact, he argued in later works that language is a necessary condition for scientific knowledge.

In the *Logical Investigations* Husserl argues the thing-in-itself is knowable as the actual fulfillment of a signative potential. That is, consider the example of perceiving a cube of sugar: the missing sides are immediately intuited as potential experiences—they are objects of cognition only as signative intentions. But, if I turn the cube in my hands, the signative intention is fulfilled by the haecceity of the side appearing to me. Husserl believed that perception includes a signative intention and adequate intention, which is what he means when he speaks of the “thing-in-

²⁰ Ibid.

itself.”²¹ Phenomenology studies intention in its signative and fulfilled form, and therefore Husserl’s motto was “back to things-in-themselves,” which meant for him, put aside the Kantian prohibition of investigating ‘*noumena*’ not because of a naïve realism, but because he understood the mind to have awareness of what fulfills its signative expectation.

C. The Phenomenological Method

Phenomenology as Radically Self-Responsible and Radically Self-Reflective

Husserl developed phenomenology because he believed that philosophy needed a new foundation. In his later works, he continued to develop his insights. He hoped to achieve a radically unprejudiced philosophy that could be unbiased by opinion (*doxa*) and subsist entirely in true knowledge (*episteme*). A comment by Husserl in *Erste Philosophie I* provides an entry point into his complex philosophy:

Socrates’ ethical reform of life is characterized by its interpreting the truly satisfying life as a life of pure reason. This means a life in which the human being exercises in unremitting self-reflection and radical

²¹ Zahavi explains,

Unlike Kant, however, Husserl does not identify the thing-in-itself (*das Ding an sich*) with the unknown cause of our experience, but simply with that which would fulfill our signative intention. In short, being is interpreted phenomenologically as a particular mode of givenness. The perceptual givenness is identified with the object. Zahavi, *Husserl’s Phenomenology*, pp. 30-31.

accountability, a critique—an ultimately evaluating critique—of his life-aims and then naturally, and mediated through them, his life-path and then naturally, and mediated through them, his life-paths and his current means. Such accountability and critique is performed as a process of cognition, and indeed, according to Socrates, as a methodological return [*Rückgang*] to the original source of all legitimacy and cognition—expressed in our terminology by going back to complete clarity, “insight,” “evidence.”²²

This passage holds a key insight into Husserl’s approach to philosophy: philosophy is not an ethically neutral activity, but one in which the philosopher takes on “radical accountability.” It is an *unremitting* self-reflection on “his life-paths” and the means for achieving them. But, as Zahavi notes, this description of “self-responsibility” has already implicit in it an appeal to intersubjectivity, “for the self-responsibility of the individual includes a responsibility to and on behalf of the community as well.”²³

Additionally, Husserl describes self-reflection as being both “self-responsible” and “radically accountable.” Zahavi suggests the moral claim at the foundation of Husserl’s thought merges a teleological and deontic claim—to have a fulfilled life, the philosopher must be satisfy the duty to be self-responsible. It is important to note at the outset, however, that Husserl is not seeking a

²² Edmund Husserl, *Erste Philosophie* (1923/24). *Husserliana* 7. Quoted in Zahavi, *Husserl’s Phenomenology*, 68.

²³ Zahavi, *Husserl and Transcendental Phenomenology*, 3.

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metaphysically teleological foundation for his ethics, nor does he deny, as Kant does, the possibility of metaphysical teleology. He seeks to avoid making either metaphysically teleological or idealist presuppositions. To be self-responsible the philosopher must be presuppositionless. Husserl seeks only to explain that philosophy requires a commitment to investigation that takes the philosopher away from the commonplace, everyday experience.

The Naturalistic Attitude

If the philosopher's commitment is to become "presuppositionless," then Husserl believed that the philosopher has to transcend her nature, since it is natural to presuppose that perception is the mediation of a pre-existent external world to the mind. He believed it is the norm for a person to believe in an ontological dualism wherein the world is represented to the mind by perception. He called this the "naturalistic attitude." It is natural in the sense of being the norm, and thus the use of the term points out that philosophizing is not a common activity. It is a specialty that requires preparation and a change in perspective. Robert Sokolowski describes the naturalistic attitude as a presupposition about the world that allows for our everyday function. When we move about in the world and seek to accomplish commonplace tasks, "we are directly caught up in things of our world." And

therefore we take our experience to be that of a world already there.²⁴ These experiences are diverse and manifold, but arising from them is the belief that the world exists externally to us as the totality of what we perceive. We find ourselves coming to consciousness in a world that already exists, into which we come into awareness with desires for it, and to manipulate it, and to be a part of it. Our experience of the world in our activities of everyday life, tuned to optimal functioning and seeking advantage, concomitantly support and are supported by the background belief that the world is pre-given.

Ordinarily, the natural sciences are so focused on their field that they do not question the belief that an external world is pre-given. As Zahavi and Shaun Gallagher put it, "Reality is assumed to be out there, waiting to be discovered and investigated."²⁵ In his later work, *The Crisis of the European Sciences and*

²⁴ Sokolowski illustrates this point with the following example:

We sit in conversation with others at a dinner table, as we walk to work, or as we fill out the application for a passport or drivers license, we have material objects presented to us through slides, aspects, and profiles through which they are given, we speak about and articulate them, we have emotional responses we have emotional responses to things that are attractive or repellant, we find some things pleasant to look or hear and other things unpleasant and disruptive and so on.

Robert Sokolowski, *Introduction to Phenomenology* (Cambridge, UK: Cambridge University Press, 2000) 42.

²⁵ Gallagher and Zahavi, *The Phenomenological Mind*, 22.

Transcendental Phenomenology,²⁶ Husserl argued that the natural sciences were in a state of crisis because they had not questioned the naturalistic attitude. As Zahavi puts it, “the positive sciences have never advanced to an understanding and thematic treatment of their own intentional accomplishments.”²⁷ It is “precisely this neglect (of questioning the ontic status) that has resulted in these sciences never having advanced to an actual understanding of the genuine ontological sense of their domain of research and, ultimately, to the genuine ontological sense of the world.”²⁸ He means that the sciences are not “radically scientific” because they rest on unquestioned presuppositions and “leave their own foundations unthematized and simply presuppose these foundations dogmatically.”²⁹

Husserl challenges the “common-sense” acceptance of the ontological reality of the external world, “putting the being of the world into question instead of presupposing it.”³⁰ In his view, lacking self-responsible foundations, the sciences are incomplete both in their ontology and in their account of the consciousness. Due to the naturalistic attitude, the sciences presume that the world is mediated to the mind through perception. This causes them to overemphasize the analysis of

²⁶ Edmund Husserl, *The Crisis of the European Sciences and Transcendental Phenomenology, An Introduction to Phenomenological Philosophy*, David Carr (trans.) (Evanston, IL: Northwestern University Press, 1970).

²⁷ Zahavi, *Husserl and Transcendental Intersubjectivity*, 2.

²⁸ Ibid.

²⁹ Ibid.

³⁰ Zahavi, *Husserl and Transcendental Intersubjectivity*, 3.

atomistic instances of perception, as if the mind is presented with a mosaic of instant perceptions. They cannot account for the intuition of the whole of the object that transcends the fragmented perceptual data of it, and therefore the sciences are incomplete both in their description of beings and in their account of the consciousness. Husserl believed that philosophy should provide the pre-scientific foundation for knowledge. His goal for phenomenology was to develop a rigorous, self-responsible investigative procedure to determine the “essence” or formal structure (he used the term “eidetic” to refer to this notion of “ideal” structure) of the “whole life of consciousness.” In order to do this the philosopher must become free of the natural attitude.

Phenomenological Reduction (Epoché)

Husserl views the task of self-responsible philosophy as being: “to disclose reality ... as it shows itself before scientific inquiry.” This means that the philosopher must question claims that are taken as true without reflection. He believed that this was the state of the natural sciences in the nineteenth century. They had overstepped the limits of their presuppositions. Thus he concludes that philosophy “aims to provide a foundation for the sciences from pretheoretical experience.”³¹

³¹ Martin Heidegger, (trans. Theodore Kisiel) *The History of the Concept of Time, Prolegomena* (Bloomington, IN: Indiana University Press, 1979) 2.

But, Husserl believed that it is impossible to perform this task “if one simply presupposes and accepts the metaphysical and epistemological assumptions” of everyday life given as the natural attitude.

Husserl argued that a background assumption that results from the natural attitude is the belief that intentional objects represent something in the world or in the mind. He believed, however, that as a self-responsible investigator, the philosophers should reach this conclusion from the evidence of the phenomenon itself, but there is no evidence in the phenomenon that the intentional object is representational or that it is not. That is to say, the claim that perceptions represent the thing perceived can be neither confirmed nor denied by the evidence provided through the lived experience of the phenomenon. Therefore, Husserl believed that it is responsible to “bracket” (set aside) the question of whether the intentional object represents something external to the mind.³²

³² Don Zahavi observes:

Thus one of the decisive differences between Husserl’s theory of intentionality and the theories that he was influenced by...is that Husserl stubbornly denies that the intentional object should be understood as an intramental content that in the best of cases serves as mediator for our access to the real, mind-transcendent object. As Husserl emphasizes one can only intend an object if it is the object of our intention, that is, if it is the intentional object. Zahavi, *Husserl’s Phenomenology*, 21-22.

In sum, Husserl's position is that the particular experience of an intentional object suggests nothing beyond itself. He does not believe that mental images appear in the mind that signify or represent something external to the mind. To believe so would be to presuppose an external world—a presupposition that one brings to an interpretation of the phenomenon. That is to say, the philosopher as a self-responsible ethical investigator must perform a substantial personal transformation that engages the philosopher in a radical commitment to self-responsible life built on radical self-reflection. No matter how obvious or "self-evident" the natural attitude might seem, it cannot be presumed. An unbiased self-reflection on the case to be made for what is naturally presupposed in ordinary life must be carried out in order to be radically self-responsible. In order to bring unbiased focus to the task, it is necessary to "suspend or bracket" our acceptance of the natural attitude.

He uses the term “*epoché*” to refer to the method for accomplishing emancipation from presuppositions of the natural attitude.³³

This “bracketing” or “suspension” of the natural attitude allows for a self-responsible assessment of the presuppositions brought by the natural attitude. For Husserl this assessment is essential for any scientific endeavor. As Zahavi puts it, “we must give up our natural positing of the world...in order to pay attention to the *how of its mode of givenness*.”³⁴

Two points should be observed about the *epoché*. First, it is not a denial of ontological realism, but a suspension of dogmatic attitudes toward it until a self-responsible assessment of it can be made and characterized. It is an ethical

³³ Donn Welton explains:

Husserl’s way of expressing it is to say that the natural attitude as a whole must be “put out of play.” We no longer “go along” with the normal course of living towards things, no longer “play along” with the belief in existence, a belief operative in and thus constitutive both of all particular acts fixed on their referents and of the world that is co-given in and with each given. We “suspend” or “hold in abeyance” this unthematized yet global belief and this has the result of shifting our attention to an analysis of what, if anything, remains. To put it noetically, existence is “bracketed.” The neutralization of the natural attitude Husserl calls *epoché*. Donn Welton, *The New Husserl*, (Bloomington, IN: University of Indiana Press, 2003) 89.

³⁴ Zahavi, *Husserl and Transcendental Intersubjectivity*, 4.

obligation of the philosopher to ground the presupposition of ontological realism in a radically self-responsible self-assessment. Second, the *epoché* should not be viewed as a lasting accomplishment. “The *epoché* is an attitude that one has to keep accomplishing.”³⁵ Assuming one has achieved a moment of clarity and successfully “bracketed” the natural attitude. Now, then, what might constitute the foundation of knowledge from a viewpoint that does not already presume a theory of evidence? Husserl addressed that question in Section 24 of *Ideas I*. He writes:

No theory we can conceive can mislead us in regard to the principle of all principles: that very primordial *dator*. Intuition is a source of authority (*Rechtsquelle*) for knowledge, that whatever presents itself in ‘intuition’ in primordial form (as it were in its bodily reality), is simply to be accepted as it gives itself out to be, though only within the limits in which it then presents itself. Let our insight grasp this fact that the theory itself in its turn could not derive its truth except from primordial data.³⁶

Zahavi explains that “our investigation should turn toward the *givenness* or *appearance* of reality,” in order that reality can disclose its true nature. The fundamental question for Husserl is how does this turn to intuition as primordial *dator* lead to self-responsible assessment? This was a foundational question for phenomenology.

³⁵ Gallagher and Zahavi, *The Phenomenological Mind*, 23.

³⁶ Edmund Husserl, (trans. W. R. Boyce Gibson) *Ideas, General Introduction to Pure Phenomenology* (New York: Collier Books, 1974), 83-84.

Transcendental Idealism

Husserl continued to develop his thinking on intention after the *Logical Investigations*. In *Ideas I* written in 1913, he first undertook to develop phenomenology as an investigation of transcendental subjectivity. The term “transcendental” in this context refers to eidetic determinations that are brought to light in essences that define species of beings, and thus transcend species. In scholastic thought, transcendentals were attributes (or names) of the divine, such as truth, goodness, and beauty. In modern philosophy, Kant sought to modify this usage to refer to knowledge that includes knowledge of objects and our way of knowing objects in so far as they might be known *a priori*.³⁷ In *Ideas I*, Husserl attempted to describe phenomenology as transcendental philosophy in this sense of seeking to understand the essential structure of lived experience that is apparent by virtue of the *epoché*.

But, why should the turn from the natural attitude lead directly to transcendental intersubjectivity? One way that Husserl attempted to do this was to turn to a Cartesian-inspired thought experiment: this is Husserl’s “Cartesian Way.” Descartes’ *First Meditation* was Husserl’s model for this—I can doubt the existence of everything except my own existence. Husserl bends the Cartesian thought experiment to his own purposes. He views Descartes’ achievement to be the claim that consciousness is revealed to be “an independent region of being and experience.” In his reflection on this achievement, Husserl suggests that subjectivity

³⁷ Welton, *The New Husserl*, 22.

can be characterized in two radically different ways: (1) as a natural psychological event; and (2) as pure, transcendental. In the first mode, subjectivity as psychological event, the idiosyncrasies of human thought are emphasized. That is, I am this type of subjectivity that has particular contingent features. In the second mode, subjectivity as pure transcendental event, the contingent is removed from consideration. This is the condition necessary for the possibility of subjectivity. To achieve understanding of the transcendental subjectivity, one must be transformed through the *epoché*.

This division of two types of subjectivity creates the dilemma that lies at the heart of Husserl's transcendental idealism:

According to Husserl, every object must necessarily be understood in its correlation to experiencing (constituting) subjectivity if dogmatic presuppositions are to be avoided. But if a decisive break with ontological dogmatism demands and implies a return to the field of givenness, any assertion concerning the existence of an absolutely mind-independent reality seems unacceptable. We are thus confronted with Husserl's idealism.³⁸

On the one hand, Husserl believed that reality is not detached from experience. But on the other hand he vehemently denied phenomenalism—or the view that the intentional object can be reduced to perceptual sensations. He seeks a synthetic

³⁸ Zahavi, *Husserl's Phenomenology*, 68-69.

interpolation of perception and objectivity, in which the intentional object is viewed as “a system of validity and meaning that needs subjectivity....”³⁹

Husserl’s conception of the transcendental object is therefore dependent on the phenomenologically given. To speak of transcendental objects “is to speak of objects that might always surprise us, that is, objects *showing themselves* differently than we expected.”⁴⁰ So, for Husserl objects exist independently of our experiences of them, and thus can be surprising to us. However, he also believed that they have no meaning for use apart from our consciousness of them. An implication of this view is a critique of representationalism, or the belief that intentional objects correspond to and represent objectively real objects. Zahavi explains that Husserl rejected this view arguing that it is a result of the natural attitude. Zahavi describes Husserl’s view as being an “experiential realism,” which is realist in the sense of denying that intentional objects mediate between an exterior and interior, but it not

³⁹ Ibid.

⁴⁰ Ibid. 70.

a naïve metaphysical realism that denies the role of subjectivity in constituting knowledge.⁴¹

Summary

For Husserl it is the ethical responsibility of philosophers to challenge the presuppositions of the naturalistic attitude. The reason for this moral obligation has to do with Husserl's conception of absolute self-responsibility. Zahavi is quick to note that the sense of moral purpose that lies at the foundation of phenomenology is already intersubjective. Husserl explained that "the self-responsibility of the individual includes a responsibility to and on behalf of the community as well. Like Socrates, Husserl "speaks of an ultimately true, self-responsible life in full clarity and transparency, a life that is made possible precisely through a radical ultimate

⁴¹ A disagreement among American phenomenologists should be noted here. The disagreement regards how to interpret the concept of *noema*. Husserl extends his analysis of intention by developing his conception on "*noema*." There is some controversy over what Husserl intended by this term, leading to what Zahavi calls West Coast and East Coast interpretations. The West Coast interpretation, led by Hubert Dreyfus, is closer to Frege in reading the content of intention as propositional. In this case, *noema* refers to the internal content of awareness that is separate from the external world. An East Coast interpretation, however, reads Husserl as holding that intentionality is a "fundamental feature of conscious experience...." (Ibid. 59).

grounding, a radical self-reflection.” The philosopher, acting on this sense of responsibility seeks to be responsible by pursuing truth through carefully setting aside ontic presupposition in order to achieve an unbiased assessment of the evidence. This is the phenomenological attitude, which seeks to “bracket” ontological presuppositions in order to give unbiased analysis to the best evidence for ontological commitments. The ethical commitment of self-responsibility demands “constantly more radical self-critique towards the infinite search for definitive evidence.” For Husserl, then, awareness of the world is an accomplishment of the mind as it struggles to learn the truth about a world into which it comes into existence. The philosopher, sensing an obligation to self and others to seek truth “investigates the intentional accomplishments of the experiencing, constituting transcendental subject.”

C. HUSSERL AND TRANSCENDENTAL INTERSUBJECTIVITY

Foundational Questions

Zahavi argues that in his later work Husserl came to view phenomenology as requiring a a transcendental account of intersubjectivity. He argues that Husserl’s insight into the phenomenological nature of intersubjectivity make possible a new understanding of philosophy. Fundamentally, the project of phenomenology involves the detection and communication of the structure of phenomena. It is a foundational presupposition that the phenomena are common (and therefore intelligible) to others. As Zahavi puts it, “True being thus not only means being for an individual I, but points *a priori* beyond the individual I to the nexus of possible

intersubjective verification.”⁴² For the world to be a common experience, there must be an experience that transcends individual subjective experience. Therefore, phenomenology must provide a transcendental account of the relationship between subjectivities. Husserl’s awareness of this critical dimension grew as he developed his theory.

Thus critical to Husserl’s work is the phenomenological analysis of experience of others. This is because it is only by experiencing others that there can be the possibility of a self-transcending experience. That is to say, it is necessary (but not sufficient) for transcending personal subjectivity that one have experience of others, “for it is through the experience of others that we are led beyond our immanent sphere of oneness and arrive at the truly transcendent *inter*-subjective world.”⁴³ This leads Husserl to a radical claim, that it is only through the experience of another (an alter ego) that I can experience objectivity and transcendence. That is, it is the awareness of other minds that makes objective truth possible. Zahavi seems to mean that for Husserl, the fact that other minds exist, which have experiences as my own, make it possible for me to believe that there can be experiences that are objective (external to me) because they might be experienced by others. Zahavi believes that it is this insight into the fundamental character of intersubjectivity that makes “a new understanding of phenomenology possible.”⁴⁴ He grounds this opinion on the constitutive nature of the reflection involved in the

⁴² Zahavi, *Husserl and Transcendental Intersubjectivity*, 25.

⁴³ Ibid, 32.

⁴⁴ Ibid, 105.

analysis of intersubjectivity. It is a “meta-phenomenology” or phenomenological analysis of phenomenology itself. Reflection on the lived experience of others leads to reflection on themes like generativity, historicity, and normality.⁴⁵ As he puts it, “we can begin to see intersubjectivity as the key to the transformation [of phenomenology], or as the connecting thread that ties it all together.

Later Developments

Next, Zahavi reviews the contributions of later phenomenological thinkers to the intersubjective awareness that Husserl identified but did not fully develop. He describes Heidegger’s *Dasein* as “comportment with the world.” Taking care in his analysis to emphasize the role of technology in Heidegger’s analysis as material culture that presupposes others. He writes,

According to Heidegger, we are not first and foremost occupied with perceptual objects in a theoretical way, but with “handling, using, and taking care of things.” But the entities we encounter in this “taking care of things” –entities that Heidegger calls “*useful things*,” “gear,” or “equipment” (each of these expressions used to translate *Zeug*), and whose unique mode of being he characterizes as *handiness*—point in accordance with their ontological structure, to other persons.⁴⁶

Zahavi’s point is that for Heidegger, in using everyday things we are already with the “inner-worldly” being of others—we are predisposed in principle to be open to

⁴⁵ Ibid, 121.

⁴⁶ Ibid, 124 (citation omitted).

others. This openness to others is “the formal condition of the possibility of the *co-disclosure* of the *Dasein* of others for the *Dasein* with in each instance is ones own.” (Z2, 125). Heidegger calls this “being-with,” and Zahavi believes that it is the most significant contribution that Heidegger makes to Husserl’s work on intersubjectivity.

The second development comes from Jean-Paul Sartre’s analysis of intersubjectivity in *Being and Nothingness*. Zahavi explains that while Sartre’s approach is similar to Husserl’s in as much as both believe that the experience of the world by others is constitutive of transcending the self, the experience by another severs the world from me. But, for Sartre, the severing is a deprivation of the world. For example, I can experience my favorite Gustav Klimt painting, know it intimately and richly in the details of the private experience of it. But, for Sartre, when I watch other persons experience the painting, I feel deprived of my experience because it is transformed by my awareness of their private experiences. While Zahavi ultimately rejects this view for being inconsistent, he praises Sartre for introducing affectivity into the analysis of intersubjectivity.

Finally, Zahavi examines the “series of striking analysis” that he attributes to Maurice Merleau-Ponty. He focuses on three themes, incarnation, perception, and speech, which are particularly formative. Looking to Merleau-Ponty’s writings, *The Phenomenology of Perception*,⁴⁷ Zahavi explicates Merleau-Ponty’s understanding of the conditions for the possibility of intersubjectivity. He is concerned with

⁴⁷ Maurice Merleau-Ponty, (trans. Donald A. Landis), *The Phenomenology of Perception*, (London: Routledge, 2014).

developing a transcendental account of the possibility of the intersubjective experience. Zahavi suggests that the fundamental insight for him is that I, others, and world can “only be explicated side-by-side.”⁴⁸ He summarizes Merleau-Ponty’s claim this way: “the subject must be seen as a worldly incarnate existence, and the world must be seen as a common field of experience if intersubjectivity is to be possible at all.”⁴⁹ This stands as a critical perspective on idealist accounts of the subject, which seek to understand subjectivity apart for others and the world.

Merleau-Ponty contends that it is impossible to understand subjectivity within itself. He argues that if the self, as self-constituting consciousness, were the absolute coincidence with itself, then the possibility of a co-equal other is impossible. Zahavi makes two points: “First, an absolute constituting consciousness of this nature could not tolerate an equal: it could not constitute and epi-primordial other and would therefore necessarily be unique.” And second, there would be no “rupture” in the self that makes it possible to be open to the other. He means that the experience of incompleteness of the self is necessary to posit another. He quotes Merleau-Ponty, stating that if the experience of self is perfect, “the contact of my thought with itself seals me within myself, and prevents me from ever feeling that anything eludes my grasp....”⁵⁰ The rupture that is needed to posit another is a break within self-awareness that interrupts one’s thought by imposing an awareness of a limit. The rupture is necessary (but not sufficient) for the possibility of the other,

⁴⁸ Zahavi, *Husserl and Transcendental Intersubjectivity*, 105.

⁴⁹ Ibid, 150 (citations omitted).

⁵⁰ Ibid.

and conversely, intersubjectivity is contingent upon the rupture in consciousness. The subject is not closed in its own immanence; it is engaged in the world and interactive with others.

The next set of themes that Zahavi takes up is Merleau-Ponty's analysis of *temporality* and *corporality*, both of which contribute to the rupture. Temporality is experienced as a limit in self-awareness. Time is a "thickness of duration" that interposes between the reflecting I and the I that is reflected upon, making the self opaque to itself. Since one does not have an experience of immediate awareness of oneself in the past and future, temporality is known as a limit to self-awareness. Similarly, having a corporal body creates a limit within subjective self-experience. There is an awareness of self, distinct from an exterior world, but Merleau-Ponty insists that the distinction is never a complete separation. This is critical to his thought. One feels separate and yet connected to an external world, not through the medium of interposing signs, but immediately and bodily.

Similarly, being a physically embodied creature is experienced as a limit for Merleau-Ponty. He describes perception as a drive toward overcoming the essentially incomplete and limited act of possessing an object. The body constitutes the space in which subjective experience occurs. In this sense the body is our "being-in-the-world." Zahavi quotes from Merleau-Ponty:

There is therefore no occasion to ask ourselves why the thinking subject or consciousness perceives itself as a man, or an incarnate or historical subject, nor must we treat this apperception as a second order operation which somehow performs starting from its absolute

existence: the absolute flow takes shape beneath its own gaze as ‘a consciousness’, or a man, or an incarnate subject, because it is a field of presence—to itself, to others and to the world—and because this presence throws it into the natural and cultural world from which it arrives at an understanding of itself.⁵¹

Zahavi explains that for Merleau-Ponty, “a phenomenological description does not disclose subjectivities that are inaccessible and self-sufficient but reveals a continuity between intersubjective life and the world.”⁵² This distinction without separation is critical to the experience of other persons. “The possibility of another person’s being self-evident is owed to the fact that I am not transparent for myself, and the my subjectivity draws its body in its wake.”⁵³ For this reason, in our corporal existence, we are already social, since the possibility of experiencing the other is conditioned on the experience of corporal self as other. Three relationships are therefore already present in experience: the relationship with self; the relationship with world; and the relationship with other.⁵⁴ They are constituted in awareness prior to the presupposition of objectivity. Thus, it is in that pre-objective experience that they must be analyzed.

Zahavi is careful to point out that Merleau-Ponty is not denying the personal identity of the subject, but rather adding in an awareness of the role of the social in

⁵¹ Ibid, 153-154.

⁵² Ibid, 153.

⁵³ Ibid, 151-152.

⁵⁴ Ibid, 155.

constructing identity. The solitude and individuality of the person is experienced as a limit and absence of the communicative and social. I cannot experience others as they experience themselves or as I experience myself. My experience is always uniquely my experience and is a constituent of my essence. But, my awareness of others is also fundamental to my experience. And thus, intersubjectivity is both a result of and necessary for my self-awareness. As Zahavi puts it,

“Even the self-awareness of thought is incorporated into a pre-thetic and pre-reflective life, this does not cancel the distinction between subjects that makes intersubjectivity a true inter-subjectivity.”⁵⁵

Zahavi suggests here that for Merleau-Ponty, it is the awareness of the limit accompanying temporality and corporality that makes it possible to have experience of another subjective self. This is foundational for intersubjectivity, but it does not deny the importance of subjects. It highlights the significance of the limit of subjectivity for the possibility of intersubjectivity.

Next, Zahavi examines Merleau-Ponty's conception of language, which anticipates some of Apel's critique of Husserl. He shows that Apel's claim that phenomenology is a solipsistic philosophy is anticipated by Merleau-Ponty, who argues that it is “possible to create a solipsistic philosophy, but doing so presupposes a linguistic community....” That is to say, while in principle a coherent solipsism can be stated, the statement of it occurs through language that presupposes intersubjectivity. Thus, the statement of a solipsistic philosophy is a performative self-contradiction. Moreover, Zahavi notes that a closer analysis of

⁵⁵ Ibid, 157.

dialogue “recapitulates the corporal/perceptual co-existence at a higher level.”⁵⁶

Here he means that in dialogue, the perception of each speaker is shaped by the other. They share thought reciprocally, and through their sharing their perspectives merge. When I engage in dialogue with another, I find the other’s thoughts mingling with my own, and therefore I experience myself as other and other as a part of me. Discourse is not mastered by me, but masters me. According to Zahavi, Merleau-Ponty believed that this point is the key to understanding Husserl’s conception of intersubjectivity. Zahavi suggests that Merleau-Ponty’s greatest contribution may be his analysis of the importance of “self-rupture” for intersubjectivity: that I can only encounter the other “if I am beyond myself from the beginning.”⁵⁷

Summary of Zahavi’s Interpretation

Husserl came to believe, then, that in every lived experience there is a transcendent experience that is only made possible by the experience of others, “for it is through the experience of others that we are led beyond our immanent sphere of ownness and arrive at the truly transcendent inter-subjective world.”⁵⁸ Husserl’s radical claim here is that there can be no objective awareness without others—that “the transcendence of objectivity is constitutively related back to this transcendence

⁵⁶ Ibid.

⁵⁷ Ibid, 159.

⁵⁸ Ibid, 32.

... the particularly elusive character of this experience of others.”⁵⁹ I take this difficult passage to mean that it is the possibility of other conscious minds that makes possible the claim of objectivity. That is, once the possibility of others becomes real to me, I can imagine an objective world that is stable between us.

Zahavi draws several conclusions from this analysis of later phenomenology, but several are particularly important here: First, he is convinced by Merleau-Ponty’s claim that “Intersubjectivity is a relation between subjects, which is why the point of departure for a phenomenological treatment of this theme must be an investigation of the subject that is related to the world and to others.”⁶⁰ Second, the intersubjective character of a person is not contingent. It is an *apriori* determination. And, third, pre-linguistic and extra-linguistic structures of subjectivity play significant roles in intersubjectivity. That is to say, a part of the relationship of one person to another person involves aspects that are unexpressed or are not capable of being reduced to a linguistic form. Zahavi believes that this claim is denied by philosophers who have made the “linguistic turn” since they view intersubjectivity solely in terms of the pragmatics of language.

PART II. THE PRAGMATIC/LINGUISTIC APPROACH

Zahavi engages communicative ethics by putting his interpretation of phenomenology into dialogue with the widely influential discourse theories of Apel

⁵⁹ Ibid, 33.

⁶⁰ Ibid, 165.

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and Habermas, who develop critiques of phenomenology based on their pragmatic/linguistic method. Zahavi argues that neither of these philosophers fully grasped the scope of Husserl's philosophy. The critical issue for the discourse theorists was the status of phenomenology as a transcendental intersubjectivity—that is, as an analysis of the necessary and sufficient interpersonal conditions for reason. A central commitment of discourse theorists is the claim that valid cognitive awareness is possible only in and through intersubjectivity, which they take to be a rational adjudication of the pragmatic consequences of defeasible propositions. That is to say, for Apel and Habermas, meaningful cognition is an accomplishment of the skillful use of language in argumentative exchange.

Although both philosophers draw from Kantian conceptions of philosophy, they developed somewhat different critiques of phenomenology. Where Kant's understanding of practical reason is derived from his conception of transcendental subjectivity, both Apel and Habermas shift the foundations of validity from transcendental subjectivity to transcendental intersubjectivity. This means that for them validity is achieved when defeasible propositions have been adjudicated in free and open discourse. This approach is intersubjective in as much as it takes discourse between and among subject individuals as its starting point. It is transcendental in that it seeks to find the principles for discourse that are necessary and sufficient for reason. Although they agree that meaning is a cognitive outcome of the use of language, Apel and Habermas have slightly different theories. Working out the differences is useful here, since Zahavi's reading of Husserl takes on each

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theory and makes counter claims against the critiques of phenomenology brought by each philosopher.

A. KARL-OTTO APEL'S TRANSFORMATION OF PHILOSOPHY

In *The Transformation of Philosophy*,⁶¹ Karl-Otto Apel advocates for a “linguistic-pragmatic” perspective that grounds practical reason in the principles necessary for pragmatically effective discourse. He shares with Habermas in believing that the truth of any proposition lies in its potential to be universally realized through a process of open discourse and reasoned argument. Although they develop somewhat different approaches—Apel calling his approach a “transcendental pragmatic” and Habermas calling his a “universal” pragmatic—both advocate for a “transformation of philosophy,” away from Kantian subjectivity toward an intersubjective grounding of epistemology. Apel’s project is rooted in his belief that Kant failed to find the foundations of knowledge in the conditions for the possibility of universally logical form of consciousness because he did not take into account the role that intersubjectivity plays as a condition for valid experience.⁶²

Apel argues for a shift away from the subjective turn, which he identifies with Kantian transcendental idealism, towards an intersubjective epistemology grounded in the pragmatic discourse. For Apel the possibility of knowledge is dependent upon persons engaging in communicative discourse aimed at solving a practical problem. His claim is that Kantian transcendental idealism was naïve because it did not take

⁶¹ Karl-Otto Apel, *The Transformation of Philosophy*.

⁶² Apel, *The Transformation of Philosophy*, p. 311.

into account the role that intersubjectivity plays as a condition for valid experience.⁶³ He begins his analysis by looking to Wittgenstein's assertion in *Philosophical Investigations* that there is no "private evidence." This comes up for Apel in the context of his analysis of the relationship between understanding and meaning. He takes Schleiermacher and Dilthey to be exploring the nature of understanding and Wittgenstein to be seeking to understand the logic of meaning. Dilthey's method is that of the hermeneutic of the "historical school" of human sciences in nineteenth century Germany, which sought to interpret a text through the "positive preconditions for understanding" by means of achieving an "historical understanding of the age."⁶⁴ This attention to historical context includes for Schleiermacher and Dilthey, the reconstruction of a psychological motif that lies external to language. For thinkers in this school, a text has meaning open to various interpretive understandings that are conditioned by the particularity that result from historical circumstances, and these particularities include attitudes and predispositions that are ineffable.

Apel contrasts Dilthey's investigation of "understanding" with Wittgenstein's logical investigation of "meaning." The young Wittgenstein, an aircraft engineer by training, expressed Bertrand Russell's hope to achieve a mathematically educated philosophy of logic. In contrast to the historicism of Dilthey's hermeneutic approach, this school sought to clarify expressions through the development of a logically precise language. This approach, which Apel describes as logical/empiricist is

⁶³ Ibid.

⁶⁴ Ibid, 2.

associated with Ockham's nominalism. It is ahistorical, in the sense that it seeks autonomy from historical understandings upon which Dilthey's method relied. The logical meaning of propositions was its focus. For Wittgenstein, particularly in his early work in the *Tractatus*, this understanding of logical meaning is simply the information content of a communication.⁶⁵ Thus, when he writes in the *Tractatus*:

"The world is what is the case" (1.0) and

"The world is the totality of facts, not things" (1.1)

he means that what can be understood about the world is only the information carried in communications. Later, Wittgenstein states that to understand a proposition is "to know what is the case if it is true." (4.024) Apel argues that this must mean for Wittgenstein that to "to understand a proposition, therefore, means to be able to state the logico-linguistic method of its possible verification." That is to say, to understand a proposition is to know how to show whether what is states is the case or not. This is what the neopositivists called the "verification principle." Where propositions fail to contain the method of their verification, they have no sensible meaning—they are nonsensical. Wittgenstein believed that most philosophical statements are nonsensical because they do not. Apel notes that Wittgenstein was aware of a psychological problem with understanding, because he acknowledged that ineffable qualities accompany understanding, but for him these are "philosophically inessential."⁶⁶

⁶⁵ Ibid, 4.

⁶⁶ Ibid, 7.

The later Wittgenstein rejects the project of a logically precise language in favor of an “ordinary language” approach. This foundational shift is expressed in the *Philosophical Investigation* in Wittgenstein’s claim that “Philosophy is not a body of doctrine, but an activity (4.112).” For Wittgenstein, this is a radical rejection of theory-formation in philosophy, which extends to correspondence of mental concepts to their reference. That is, he denies that concepts and words refer to quiddity or essentialism. They have meaning only in use in the linguistic practice that he calls the “language game.” For Apel, Wittgenstein’s language game is a

“quasi-transcendental philosophical perspective. As he explains, “whereas it originally seemed as if ... the understanding of meaning was to be replaced by the external description of behavior, this doctrine now seems to assert that only within the framework of a language-game does human behavior become possible....”⁶⁷

It might appear that Wittgenstein endorsed a form of behaviorism—that understanding is accomplished only through the method of objective criteria of empirically observable action. But, Apel is careful to point out here that Wittgenstein’s intention is to show that the meaning of behavior is intelligible only within the language game because individual acts of verbal expression are unintelligible without the context of the language game in which they are located and to which they contribute.

This explains for Apel why Wittgenstein believes that meaning cannot be a “private” affair. One cannot privately follow a rule because there would be no

⁶⁷ Ibid, 32.

intelligible way to determine whether the rule is being followed without some verbal description of the rule. Apel explains,

He would be unable to distinguish between the arbitrary and the norm, since every operative norm which provides criteria for such distinctions is dependent, among other things, upon the fact that other people can check whether the norm is being followed. Another person, however, would be unable to recognize from his outward behaviour whether he were following a rule or not, unless they had already agreed upon this rule, or the other person could reach an agreement with a third person who could check the behaviour of the first by recourse to a public rule (for instance, 'habit' or 'institution'). Without reference to such a public controlling instance the other person might regard even fortuitous (natural spontaneous) movements as rule-governed behaviour.⁶⁸

⁶⁸ Ibid, 32.

One cannot privately follow a rule or have a private language, nor can behavior be intelligible, without presupposing a language game that has aspects of a public “habit” or institution.⁶⁹

Apel takes this to be a critical insight of Wittgenstein that entails the relationship between his thought and Dilthey’s. Apel refers to the modern philosophy of the person as a methodological solipsism. He has in mind Descartes’ *Cogito*, which he understands as an attempt to follow a private rule. The problem with this, from Wittgenstein’s perspective, is that Descartes fails to realize that the *Cogito* itself is, at least to some degree, an outcome of language. It is a methodological solipsism in the sense that it denies it the transcendental intersubjective conditions of its own possibility. Apel recognizes that Dilthey’s approach seeks an intersubjective ground for understanding the person. That ground is empathy achieved through historical awareness. Wittgenstein’s view of meaning, however, would imply that the historical awareness that Dilthey seeks is a form of a language game. His claim against hermeneutical approaches, including

⁶⁹ On Kripke’s reading, Wittgenstein is asserting that one cannot privately follow a rule because, if one could, then there would be no distinction between the objective practice of obeying a rule and subjectively thinking one is obeying a rule. It follows from this that there can be no private language because the rules of a private language would necessarily be private rules. Kripke’s work provoked many responses, some arguing that his reading of Wittgenstein is original, led to it being called a “Kripkenstein” synthesis.

Husserlian phenomenology, is that they are solipsistic methodologies because they fail to take the linguistic turn.

Zahavi summarizes Apel's argument for the discourse approach and his critique of phenomenology (more on Apel's critique of Husserl later). Zahavi explains Apel's intersubjective argument in two points: First, "Apel claims that the solipsistic position can be definitively refuted by proving that the assumption of a private language is nonsensical." The second point of Zahavi's reading of Apel is that "intersubjectively valid interpretability of the evidence of a given phenomenon is dependent upon the propositional sentence with which the state of affairs in question can be linguistically described."

With the first point Zahavi means not only that a person cannot gain universal acceptance of a private truth, but also that no criteria exists for an individual to discover truth alone. Truth is inherently intersubjective. Anyone who wished to introduce a language for empirical data accessible only to himself (e.g., pain) that was intelligible only to himself (one not consistently connected with standard usage and consequently untranslatable) would not possess any criteria for the correct use of language. He would be unable to distinguish between the arbitrary and the norm, since every operative norm which provides criteria for such distinctions is dependent, among other things, upon the fact that other people can check whether the norm is being followed.⁷⁰ Zahavi reads Apel as holding that it is only through a linguistic community that one can access the validity of following a

⁷⁰ Ibid, 32.

language game, and thus only in a discourse community can the truth of an apprehended meaning be validated.

The second point of Zahavi's reading of Apel is that "intersubjectively valid interpretability of the evidence of a given phenomenon is dependent upon the propositional sentence with which the state of affairs in question can be linguistically described."⁷¹ He means that for Apel meaning is solely the province of communication. To have valid meaning, a thought must be expressed in defeasable propositions and those propositions must be communicated to others for adjudication. Therefore subjective experience is not meaningful unless it is linguistically expressed and communicated. Which is to say, there are no meaningful pre-linguistic experiences, since phenomena are intelligible only against the background of *a priori* grammatical and syntactical structures that are shaped by the pragmatics of language itself. Apel defends a reconstruction of transcendental idealism from an intersubjective perspective that puts at the center the contribution of the pragmatics of language and discourse. He argues that an intersubjective analysis is necessary to investigate the structure of interpersonal discourse between subjective minds. This "intersubjective" turn in epistemology places emphasis on seeking to ground knowledge in the universally necessary structure of rational interpersonal communication.

Thus, Zahavi concludes that for Apel modern approaches to the philosophy of the person are methodologically solipsistic since their claims about transcendental subjectivity do not recognize the status of intersubjectivity achieved in language,

⁷¹ Ibid.

and therefore views the validity of knowledge as an individual accomplishment. For this reason, Habermas and Apel can be said to deny the possibility of meaningful pre- or extra-linguistic experiences, since the possibility of meaningful experience is necessarily conditioned by the grammar and syntax of pragmatic linguistic expressions that form the structure of linguistic intersubjectivity. A core claim of their analysis is thus that true propositions can be assessed by their potential to garner universal assent to their legitimacy, and thus the truth of a proposition can be assessed through rational deliberation and argument.

B. JÜRGEN HABERMAS' "UNIVERSAL PRAGMATIC"

Habermas concurs with Apel's analysis of the need for an intersubjective approach to epistemology, although he argues for this claim somewhat differently. Habermas' theory is intended to replace the Kantian epistemology that Habermas describes as a transcendental subjectivity. In the *First Critique*, Kant's method of transcendental argument looks to the self-evidently necessary noetic structures that provide the principles that are foundational for self-responsible, autonomous reason. Kant's approach is subjective, in the sense that it seeks principles of validation within subjective self-awareness. Kant looks within the self because he believes that since internal awareness is immediate, its structure is self-evident. And therefore he holds that subjectivity can be the basis for self-responsible philosophy.

Habermas argues that Kant's approach cannot resolve fundamental *aporias* because it starts from a monological presumption that takes as given an isolated individual with a self-governing mind. For Habermas, this presupposition prevents subjective theories like Kant's from grasping the contribution of intersubjectivity to

the self and to reason. The self is constituted by interaction with others, for Habermas, and cognitive awareness is a function of interaction. Therefore, without intersubjectivity there is no possibility of reason. Habermas' discourse theory attempts to describe the necessary and sufficient conditions for reason beginning from this presupposition of intersubjective.

Since Habermas views Husserl as also starting from a monological perspective, he believes that phenomenology also fails to account for the intersubjective nature of reason. According to Zahavi, however, Husserl was aware of the problem of intersubjectivity, and in fact believed that a transcendental intersubjectivity is at the core of phenomenology. On Zahavi's reading, Husserl was aware that phenomenology depends on a coherent theory that accounts for how knowledge is possible in the transcendental structure of lived experiences that are shared among multiple minds.

For Habermas, these *aporias* suggest that the project of subjective philosophy lacks the ability to see beyond its own starting point. Habermas believes that Kantian philosophy is structured by its presuppositions regarding the dualistic nature of mind and world. As Zahavi explains, "In Habermas' view, the concept of intentionality, and the entire architectonic of the philosophy of consciousness, is determined by a model of knowledge that is oriented toward the representation of objects."⁷² The belief that the mind is at distance from an external reality that it knows, if at all, through intentional representation is deeply entrenched in western thought, but also is unsupported by evidence or apriori reason. It is a basic

⁷² Jürgen Habermas, *Postmetaphysical Thinking*.

presupposition that arises without contest in the natural course of a developing mind. Husserl would later call this the "natural attitude" and argue that responsible philosophy involves overcoming this presupposition. The *aporias* evolve from the presumption of the mind-intention-world structure that Kantian philosophy maintains. The intersubjective cannot be evolved from a monological subjective because it already presuppose the self in isolation from the Other, and the separation is mediated through intentional representation. A truly intersubjective theory must start from intersubjective relation--a transcendental community--as the primary ontological event and the subjective self as the mediated object.

In developing this claim, Habermas turns to Husserl. As Zahavi puts it, Habermas is aware that Husserl's phenomenology is concerned with a multitude of "I's" and therefore the problem on a transcendental community. This problem is essential to the phenomenological method. Zahavi explains: "It is precisely because the phenomenological account proceeds from the I, with egoic subjectivity constantly counting as the final possible horizon of legitimization, that there is a persisting asymmetry between myself and the other in each case."⁷³ Zahavi believes that since Habermas relies only on his reading of Husserl's *Cartesian Meditation*, he misses other resources, and he is unaware of Husserl's full development of this claim. Therefore, Zahavi concludes that it, and phenomenology is a failure.

Zahavi does not attempt a full critique of the view of the contrasting views developed by phenomenological interpretations of intersubjectivity. He has argued elsewhere that phenomenology develops several accounts, noting the distinctions

⁷³ Zahavi, *Husserl and Transcendental Intersubjectivity*, 179.

between Husserl, Heidegger, Sartre, and Merleau-Ponty (and one might add Levinas, Derrida, and Lyotard as well). In this book, Zahavi makes just four points that are intended to reply to Apel and Habermas: (1) that their conception of intersubjectivity is fraught with inconsistencies, notably that an instrumentalism underlies the pragmatic; (2) although they acknowledge that the intersubjective is tightly bound to the subjective, they nonetheless attempt to keep their distance from it; (3) phenomenological analysis suggests that their distinction between public linguistic consensus and private experience is too sharply drawn; and (4) the pragmatic-linguistic construction of intersubjectivity is solipsistic in precisely the way that they seek to deny.

C. ANALYSIS

Husserl's phenomenology is rooted in a desire for philosophers to overcome the natural attitude through a radical self-assessment. But, in seeking the grounds by which such an assessment can be made, Husserl eventually developed an analysis of transcendental intersubjectivity. In this regard, Husserl is similar to Apel and Habermas who agree that knowledge is the result of a cooperative endeavor among subjective minds. But, for Apel and Habermas, language is the tool of the individual subjective mind by which it expresses its needs, plans, reasoning, and so on. It is only through the verbal medium that individuals can express subjective needs and coordinate intersubjective behavior through discourse.

Husserl agrees with Apel and Habermas in believing that meaning is a result of the complex relationship between self and other. He also acknowledges that a

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necessary (but not sufficient) condition for objective meaning is the interpenetration of subjective and intersubjective, which is to say that the transcendental structures within subjectivity make intersubjectivity possible and vice versa. It is correct, then, to claim that for both approaches, phenomenology and communicative ethics, meaning is a result of intersubjectivity, provided that one takes this claim to allow that for Husserl, intersubjective awareness is always already also a result of a dynamic process to which subjectivity makes a contribution. And, this defines meaning as an outcome of an intersubjective process. Also, one must allow that for Apel and Habermas, the individual subjective mind experiences meaning as an outcome of discourse.

But, if they mutually share in this perspective on the intersubjective nature of meaning, their commonalities only highlight their differences. For Husserl meaning arises from subjective experience and is realized in conscious awareness only when shared in common with others. Individuals have experiences that are not shared but are full of latent meaning, sometimes profoundly so. Temporality is a very significant example, as Heidegger rightly observed. Past, present, and future are more than concepts. Time exists for me as an experience with latent meaning beyond the concept of it. The latent meaning of time exists beyond the limits of what can be defined or articulated in language. It is a meaning that we share in the experience of time, for example in the anticipation or apprehension of a future event, the growing distance from the past, or the sense of immediacy of the present moment. The concepts, “future,” “past,” and “present” do not fully exhaust the meaning of the experience.

The communicative ethics approach denies that humans share in meaningful experiences that are not shared linguistically. It is well known that this claim was disputed by later phenomenology, notably Heidegger, Sartre, and Merleau-Ponty. The new reading of Husserl that Zahavi develops confirms that the grounds for their defense of phenomenology was present from the beginning in Husserl's work. Zahavi suggests that Husserl's motivation, which was to understand the interrelationship between subjective meaning and intersubjective meaning—to grasp the interpenetration of one with the other, was not a thematic goal of the communicative ethicist.

Philosophers like Apel and Habermas are captured by the natural attitude, the term Husserl used to refer to the commonplace presupposition that the mind and the world are distinct. The purpose of phenomenological reduction is to overcome this presupposition. From within the natural attitude, the transcendental condition of intersubjectivity is a question of the conditions for linguistic discourse. An individual mind can share in common with others only by overcoming the separations of mind and world through participation in the common linguistic behavior that occurs in the objective world. But, after the phenomenological reduction, the philosopher sees that there many ways that minds share in common with other minds and that the experience of another mind is a condition precedent for the possibility of an individual coming to believe in an objective world. To perceive another is to force the question, "Am I being perceived?" This question is experienced as a rupture between self and world because it asserts a limit to the self. The other is a region that is apart from me, and concealed from me. The other

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may be perceiving me, and if so, then sharing in the same experience as me perceive the other. This duality of the self perceiving the other and being perceived by other is an example of intersubjectivity that occurs without language. To answer Wittgenstein, I can privately follow a rule (to distinguish between self and other) once I have encountered an other who I believe is perceiving me, because then I can ask, would the other believe that I am following the rule? My subjective rule-following is measured against the perception of what an observer might believe of me.

This engagement of Zahavi with Apel and Habermas suggests that the status of extra-linguistic meaning is a particularly critical issue, since it cuts deeply into the differences between phenomenology and the communicative ethics theories. While this is not a new issue, Zahavi's reading of Husserl in dialogue with communicative ethics provides some new insights into the nature of the claim of Habermas' theory of post-secular deliberative democracy. For Apel and Habermas, the idea that language is the source of the capacity to think is an achievement of modern thought. It displaced a naïve realism that existed in the medieval religious context that viewed the mind as having a faculty for immediately grasping ontological forms. What modern philosophy, beginning with Descartes, achieved was awareness of the contribution that the subjective mind makes in perception and cognition. Language allows for the fixing and the signification of thought, which in turn allows for shared consideration through discourse. Viewed from this perspective, the contemporary discourse theories seek to bring modern cognitive accomplishments to democratic politics. Zahavi's intersubjective reading of Husserl's phenomenology suggests that,

perhaps, in pursuing the desire to be freed of dogmatic authority, modern philosophy became methodologically blind to extra-linguistic meaning that was a part of human awareness and that this blindness is a new dogmatism.

PART III Implications for Deliberative Democracy

Zahavi's critique of the epistemological foundations of discourse ethics suggests limitations and opportunities for revising the theory of deliberative democracy. What does it mean for a theory of deliberative democracy that it excludes from its epistemic foundations the possibility of knowledge being derived from pre-linguistic and extra-linguistic awareness? Some insight into these questions can be found in Seyla Benhabib's analysis of the epistemic foundations of discourse ethics.⁷⁴ Contemporary thought's challenges to intersubjectivity have their origins in Hegelian critiques of Kantian formalism. Benhabib begins her analysis by turning to Hegel's critique of Kant. She notes that for Hegel, Kant's description of the categorical imperative as a universal maxim cannot be applied without reference to moral principles outside of the maxim itself. Hegel argued that Kantian ethics is at best incomplete because the conditions for rationally deriving those principles are experiential (*a posteriori*) and arise in some specific historical community (*Sittlichkeit*). Benhabib suggests that the Hegelian critique of Kant finds influence today in approaches to political liberalism that question the universality of the discourse principle for producing the type of justified belief that a theory of political liberalism demands. Although Hegel was concerned primarily with Kant,

⁷⁴ Benhabib, *Situating the Self*, 21-68.

she sees similar arguments at work in a number of theories that look to specific lived experiences that occur in particular historical communal settings. The neutral autonomous reason idealized by Kantian transcendental idealism is necessarily constructed by heteronomous factors.

Benhabib looks to three specific challenges to discourse ethics: Communitarians, such as Michael Sandel, Michael Walzer, Charles Taylor, and Jean Elshtain, argue that the standards of rationality and the autonomous agent posited by contemporary liberalism are outcomes of persons living in particular, historically situated, communities.⁷⁵ They have been particularly critical of Rawlsian liberalism for failing to adequately appreciate the need for nurturing and protecting communities within the polity where understandings of the moral good are cultivated through tradition and ritual practice. A second avenue of critique has been contemporary feminist thought. Various forms of feminist critique from thinkers like Susan Moller Okin, Virginia Held, Nancy Frazier, Pamela Sue Anderson, and others challenged the hegemony of the white male ego in the accounts of intersubjective truth. For example, Okin asserts that Rawls (and the communitarians) make gender-biased presuppositions about the nature of family relations that mislead them to assume that the family is a just institution. And, the third challenge was advanced by postmodern theorists, a term that has very loose meaning, but in this case refers to the thought of Michelle Foucault, Jean-François Lyotard and Jacques Derrida. Inspired by post-Heideggerian critiques of metaphysics, these thinkers sought to bring to the surface submerged narratives of

⁷⁵ Benhabib, *Situating the Self*, 68-82.

meaning that disclose unexplored alternative standards of rationality and normative horizons.

Although a complete analysis of Benhabib's thought in relation to the phenomenological analysis of transcendental intersubjectivity must wait for a future essay, the significance seems clear. Each of the three challenges that Benhabib identifies looks to a particular standard of rationality and sources of meaning that are not universal because they are derived from lived experiences of particular lives and practices in particular historical settings. Communitarians look to the role of particular practices in particular communities in forming meaning, particular moral intuitions and the standards of reasoning appropriate to evaluating moral sentiments. From the phenomenological perspective described by Zahavi, persons will, most likely, find meaning in lived experiences of practices and of each other as they live in community. And, these experiences and practices are the pre-linguistic and extra-linguistic grounds of moral knowledge and moral reasoning. Similarly, gender develops particular ways of living in the world, with distinctly gendered practices and ways of encountering the "other." This project too can benefit from the broader epistemological account developed in phenomenology. And, finally, most of the works cited by Benhabib as "post-modern" draw from later reading of Husserlian phenomenology that do not seek to develop a transcendental account of intersubjectivity. Heidegger rejected transcendental accounts and Derrida sought to deconstruct them.

Zahavi's reading of phenomenology thus holds significance for rethinking the conception of what Benhabib calls the conception of "public space." Here, she

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examines three alternatives: the agnostic conception, which she identifies with Hannah Arendt; the legalistic conception that she sees as being derived from a rights-based theory of liberalism beginning with Kant, and the discourse liberalism of Habermas. While she defends Arendt's agnostic approach over the other two, her reading of the agnostic space can be refined and supported by the analysis of transcendental intersubjectivity. This project would entail drawing from Merleau-Ponty's theory of perception and exploring the potential of his ontology for providing a description of public space.

This essay has initiated an investigation of the significance of phenomenology for contemporary liberal democracy. It appears to have promise, particularly for thinking about the public space in which democratic discourse occurs. Understanding the nature and theoretical limits of the public space for discourse is an important question today, as many theoretical disagreements concern the epistemological conditions for validity in discourse, and the theories of subjective universals (Kant) and intersubjective universals (Habermas and Apel) come under fire. In these times, the possibility of an intersubjective universal that is extra-linguistic holds the promise of better understanding of the role of various types of discourse might have within the public space. If transcendental analysis can reveal transcendental structures that are extra-linguistic and yet universal, then it might be possible to achieve a clearer understanding of how agreement is reached when the language of discourse is diverse and the values of participants do not coincide. These are crucial questions in the contemporary period, which is

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characterized by rapid change in the global discourse environment, which is pervasively networked and in constant engagement.